

Multiple Choice (10 marks)

1. What is the protective principle of jurisdiction?
 - (a) It is jurisdiction based on the harm to national interests by conduct committed abroad
 - (b) It is jurisdiction in order to protect one's nationals abroad
 - (c) It is jurisdiction in order to protect international human rights
 - (d) It is jurisdiction based on the nationality of the offender
2. Critical Legal Studies (CLS) is often compared to (or with) American realism. Which of the following statements is inaccurate?
 - (a) Both are concerned with the 'law in action.'
 - (b) Both are anti-formalist and sceptical
 - (c) Both adopt a liberal ideology.
 - (d) Both attempt to demystify the law.
3. Soft positivism accepts that the rule of recognition may include moral criteria.' Which proposition below is the most inconsistent with this description?
 - (a) Incorporationism' accepts that judges may decide cases by reference to moral factors.'
 - (b) A soft positivist rejects the role of morality in the description of law.
 - (c) Sometimes the definition of law includes moral considerations.
 - (d) Judges lack strong discretion.
4. Which philosopher called the idea of natural rights 'nonsense on stilts'?
 - (a) Alan Gerwith
 - (b) Emmanuel Kant
 - (c) John Locke
 - (d) Jeremy Bentham
5. Which of these statements best describes the UK Constitution?
 - (a) The UK Constitution's only source of power is that of the sovereign
 - (b) The UK Constitution gives the judiciary the power to overturn acts of parliament
 - (c) The UK Constitution is uncoded and can be found in a number of sources
 - (d) The UK Constitution is based on a Bill of Rights

True / False (10 marks)

Answer True or False

6. True or False: The Critical Legal Studies School argues that legal rules serve as tools for the powerful to perpetuate the status quo.
7. True or False: Fuller's concept of law aligns closely with a positivist view, emphasizing strict adherence to established legal rules.
8. True or False: Kant's 'categorical imperative' requires individuals to always act in the best interests of their community over personal values.
9. True or False: Recognition of governments is primarily granted only to democratic entities in contemporary international relations.
10. True or False: The rule of recognition confers power and imposes duties on judges to decide cases within a legal system.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the common misconceptions surrounding Maine's aphorism 'the movement of progressive societies has hitherto been a movement from Status to Contract' and analyze its implications in constitutional law.
12. Discuss the relationship between customary law and treaty provisions, analyzing how treaties can influence the formation, codification, and evolution of customary law.

End of Paper